

IN THE HIGH COURT OF DELHI AT NEW DELHI

O.M.P.(I) (COMM.) 218 of 2025

Meridian Infra Projects Limited ... PETITIONER

VERSUS

Konkast Engineering & Construction Private Limited ... RESPONDENT

Date of Order: 20.09.2025

Coram: Hon'ble Mr. Justice R. Madhavan

Appearances: Mr. Rohan Kapadia, Advocate for Petitioner; Ms. Anushka Sagar,
Advocate for Respondent

ORDER

1. Heard learned counsel for both parties.
2. Prima facie, the certified work value exceeds the amounts released, and the threat of encashment of the Bank Guarantee at this stage requires restraint pending arbitration.
3. The Respondent, its agents and assigns are restrained from invoking or encashing Performance Bank Guarantee No. SBI/BG/2024/2217 until further orders of the Arbitral Tribunal.
4. The Petitioner shall move the Arbitral Tribunal for continuation of this protection upon its constitution.

(Hon'ble Mr. Justice R. Madhavan)